



E-FILING NO - EF-HCK-2025-063191

BEFORE THE HON'BLE HIGH COURT OF KERALA AT ERNAKULAM

WP(C) No Of Year 2025

95.01 KERALA CONSERVATION OF PADDY LAND AND WET LANDS ACT 2008

95.01 KERALA CONSERVATION OF PADDY LAND AND WET LANDS ACT 2008

PETITIONER(S)

1. INDIRA G.

VS

RESPONDENT(S)

1. STATE OF KERALA
AND OTHERS

MEMORANDUM OF WRIT PETITION (CIVIL) FILED UNDER ARTICLE 226 OF THE CONSTITUTION OF
INDIA
FORM 5 REJECTED

FILING NATURE : URGENT

FEES PAID & STATUS - 612 (SUCCESS)

C.F : 500 Under Schedule II Article 11 (l) (iii) of the Kerala Court Fees and Suit valuation Act

SERVED ON

GOVERNMENT PLEADER

FILED BY

1. K.C.VINCENT

Sd/-

E-VERIFIED

K.C.VINCENT(K/270/1997)



BEFORE THE HONOURABLE HIGH COURT OF KERALA AT ERNAKULAM

WP(C) No Of Year 2025

PETITIONER : INDIRA G.

V/S

RESPONDENT : STATE OF KERALA REPRESENTED BY THE

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Sd/-

E-VERIFIED

K.C.VINCENT

K/270/1997

BEFORE THE HON'BLE HIGH COURT OF KERALA AT ERNAKULAM

W.P.(c) No. of 2025

Indira G.

.. Petitioner

Versus

State of Kerala and others

.. Respondents

SYNOPSIS**17.10.2019** Ext P2, Form 5 submitted by the petitioner**06.05.2025** The 3rd respondent issued Ext P3 rejecting Ext P2.

The petitioner purchased an extent of 03.25 Ares of properties comprised in Re-survey No. 73/2-5 in Block No. 11 of Kureekkad Village. The same was converted to a purayidom land by depositing red soil and laterite waste much before 2008. But the subject land happened to be included in the data bank and hence petitioner submitted application in Form 5. The 3rd respondent refused to remove the land from the data bank stating that the same only partially converted and LLMC had not recommended removal from data bank. There is no finding that the applied land was suitable for paddy cultivation as on 12.08.2008. The KSRSEC report observes that the lands in survey 73/2 was fallow with scattered vegetation and plantation trees in 2008,2010 and 2011. Hence this writ petition.

Statute and judgments relied:-

The Kerala Conservation of Paddy Land and Wetland Act, 2008.

Sudheesh v. Revenue Divisional Officer, 2023(2) KLT 386

Dated this the 23rd day of June, 2025.


K.C. Vincent

Counsel for the petitioner.



E-FILING NO - EF-HCK-2025-063191

BEFORE THE HON'BLE HIGH COURT OF KERALA AT ERNAKULAM

WP(C) No Of Year 2025

PETITIONER(S)

1. INDIRA G.

W/O SREEDHARAN NAIR, INDU VIHAR, KAILAS NAGAR, KANNANKULANGARA,
THRIPUNITHURA, ERNAKULAM
, PIN-682301

VS

RESPONDENT(S)

1. STATE OF KERALA

REPRESENTED BY THE SECRETARY TO GOVERNMENT, DEPARTMENT OF REVENUE,
SECRETARIAT, THIRUVANANTHAPURAM
, PIN-695001

2. THE REVENUE DIVISIONAL OFFICER

OFFICE OF THE REVENUE DIVISIONAL OFFICER, FORT KOCHI, FORT KOCHI, ERNAKULAM
, PIN -682001

3. THE DEPUTY COLLECTOR (R.R.)

COLLECTORATE, KAKKANAD, ERNAKULAM
, PIN -682030

4. THE VILLAGE OFFICER

VILLAGE OFFICE, KUREEKKAD, KUREEKKAD , ERNAKULAM
, PIN -682312

5. THE AGRICULTURAL OFFICER

KRISHI BHAVAN, CHOTTANIKARA, CHOTTANIKARA P.O., ERNAKULAM
, PIN -682312



MEMORANDUM OF WRIT PETITION (CIVIL) FILED UNDER ARTICLE 226 OF THE CONSTITUTION OF
INDIA BY K.C.VINCENT
KURISUMMOOTTIL(H),CHAKKAMPUZHA P.O, KOTTAYAM.
PIN - 686574



STATEMENT OF FACTS

The petitioner above named submits as follows

1. The petitioner is the owner in possession of an extent of 03.25 Ares of properties comprised in Block No.11, Re-survey No. 73/2-5 of Kureekkad Village in Kanayannoor Taluk. A true copy of the tax receipt dated 26.03.2025 relating the properties of the petitioner is produced herewith and marked as **Exhibit P1.** The petitioner purchased the subject lands convincing the fact that the same is a land having the characteristics of a garden land though categorized as nilam in the revenue records, with an intention to construct a residential building..

2. But when the Local Level Monitoring Committee (hereinafter referred as LLMC for brevity) prepared the data bank as mandated in the Kerala Conservation of Paddy Land and Wetland Act, 2008 (hereinafter referred as the 2008 Act for brevity), included the subject land also as paddy land ignoring the converted status on 12.08.2008, the date of enactment of the above Act. The status of the subject land does not satisfy the definition of paddy land and hence the inclusion in the data bank is not justifiable and liable to be removed from the data bank.

3. The petitioner, in view of the power conferred on the Revenue Divisional Officer to remove the mistaken entries in the data bank, submitted an application in Form 5 before the 2nd respondent as early in 2019. A true copy of the application in Form 5 dated 17.10.2019 is produced herewith and marked as **Exhibit P2.**

4. Now the petitioner is served with a proceedings of the 3rd respondent dated 06.05.2025 rejecting the application and refusing to remove the subject lands from the data bank. A true copy of the proceedings of the 3rd respondent bearing File No. DCEKM/13137/22-B18 dated 06.05.2025 is produced herewith and marked as **Exhibit P3.** The reason stated in Exhibit P3 is that on site inspection the land was seen as partially converted and the nearby lands are not converted. The LLMC had decided not to recommend removal of the land from the data bank as reported by the Agricultural Officer. It is relevant to note that there is no finding that the subject land is suitable for paddy cultivation. In this context it is also worthy to note that a report secured from Kerala State Remote Sensing and Environment Centre (KSRSEC), it is observed that the lands in survey 73/2 was either fallow land with scattered vegetation and plantation trees in the data of 2008,2010 and 2011. A true copy of the report dated 02.11.2024 received by the 5th respondent is produced herewith and marked as **Exhibit P4.**

5. Issuance of Exhibit P3 is based on the recommendation of the 5th respondent not to remove the lands from the data bank which is based on the decision of the LLMC. The 3rd respondent committed grave error in mechanically following the report of the Agricultural Officer and especially when it was convinced that the applied land was partially converted and no finding had been reached as suitable for paddy cultivation. Hence Exhibit P3 is unsustainable in law and liable to be interfered by this Hon'ble Court.

In the above circumstances the petitioner has no alternative remedy either effective or efficacious other than to approach this Honourable Court invoking the extra ordinary jurisdiction under Article 226 of the Constitution of India, on the following among other:-

GROUND

A The subject lands are not paddy lands as defined under Sec 2 (xii) of the Kerala Conservation of Paddy Land and Wet Land Act 2008. Section 2(xii) defines paddy land as all types of land situated in the State where paddy is cultivated at least once in a year or suitable for paddy cultivation, but un-cultivated and left fallow, and includes its allied constructions like bunds, drainage channels, ponds and canals. As such the subject lands will not come under the purview of the 2008 Act as not under cultivation and not suitable for paddy cultivation.

B The respondent had convinced that the applied land is partially converted and the nearby lands are paddy lands. It is worthy to note that the 3rd respondent does not have a case that the land is suitable for paddy cultivation. Ext P4 report from KSRSEC now available also show that the lands were under scattered vegetation alongwith plantation/trees in 2008. The above report was not considered while issuing Exhibit P3. Even if the land is found lying fallow, in view of the judgment in Sudheesh v. Revenue Divisional Officer, 2023(2) KLT 386, the 3rd respondent was to satisfy that the subject land is suitable for paddy cultivation..

C The Agricultural Officer instead of submitting a report showing the status of the land including the converted status of the applied land, but simply forwarded the decision of the LLMC. The above act of the 5th respondent is in violation of the mandate of Rule 5 of the 2008 Rules. The 5th respondent also had not made any mention that the applied land is suitable for paddy cultivation at present or even in 2008.

D It is obligatory on the part of the 3rd respondent to enter a finding that the applied land is suitable for paddy cultivation. The 2nd respondent had passed Exhibit P6 on a mechanical manner, just reproducing the report of the Agricultural Officer, which is of recommendatory in nature and lacks any information about the actual status of the land including existence of age old trees and other vegetation.

E By no stretch of imagination the subject lands are suitable for paddy cultivation or can be made suitable for paddy cultivation. An item of property having an extent of 03.25 Ares cannot be utilized for paddy cultivation. Furthermore the same was reclaimed by depositing red earth and waste from laterite quarry sites which could have been ascertained by the 3rd respondent and could not be pointed out by the petitioner as site inspection was not known to her.

F If the subject land is not removed from the Data Bank, the petitioner will be put to hardships and prejudice. She is prevented from effecting construction therein. The right of the petitioner guaranteed under Article 300A had been infringed.

In the above circumstances the petitioner is constrained to approach this Hon'ble Court under Article 226 of the Constitution of India. Hence it is respectfully prayed that this Hon Court may be pleased to grant the following:-

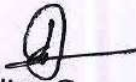
RELIEFS

- a) Issue a writ of certiorari or any other writ, direction or order calling for the records leading to Exhibit P3 and to quash the same.
- b) Issue a declaration that the lands having an extent of 03.25 Ares of properties comprised in Block No.11, Re-survey No. 73/2-5 of Kureekkad Village in Kanayannoor Taluk is not a paddy land as defined in Section 2 (xii) of the 2008 Act.
- c) Issue a writ of mandamus or any other writ, direction or order directing the competent among the respondents 2 and 3, to consider afresh the application in Form 5, Exhibit P2, taking note of the observation in Exhibit P4 and the law declared in Sudheesh v. Revenue Divisional Officer, 2023(2) KLT 386, as expeditiously as possible within a time as dictated by this Hon'ble Court.
- d) Dispense the petitioner from producing the English translation of the vernacular documents produced alongwith the writ petition.
- e) Issue such other writ, order or direction as this Honourable Court deems fit and proper to grant in the facts and circumstances of the case, for the ends of justice.

INTERIM RELIEF

For the reasons mentioned in the writ petition, it is respectfully prayed that this Hon'ble Court may be pleased to direct the 3rd respondent to consider afresh the application in Form 5, Exhibit P2, taking note of the observation in Exhibit P4 and the law declared in Sudheesh v. Revenue Divisional Officer, 2023(2) KLT 386, pending disposal of the Writ Petition.

Dated this the 23rd day of June, 2025.


Indira G.

Petitioner


K.C. Vincent
Counsel for the Petitioner



BEFORE THE HON'BLE HIGH COURT OF KERALA AT ERNAKULAM

W.P.(c) No. of 2025

Indira G.

.. Petitioner

Versus

State of Kerala and others

.. Respondents

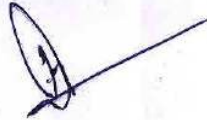
AFFIDAVIT

I, Indira G., aged 67 years, W/o Sreedharan Nair, Indu Vihar, Kailas Nagar, Kannankulangara, Thripunithura, Ernakulam-682301, do hereby solemnly affirm and state as follows:-

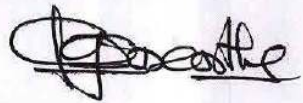
1. I am the petitioner in the above writ petition. I am competent to swear this affidavit and conversant with the facts of the case.
2. The allegations and averments in the writ petition are true and correct to the best of my knowledge, information and belief.
3. The Exhibits produced and marked are true copies of the originals.
4. The interim order prayed for is just and necessary.
5. I have not filed any other petition seeking similar and identical relief in respect of the same subject matter.

All the facts stated in paragraphs 1 to 5 in the statement of facts are true and correct to the best of my knowledge and those in grounds A to F are as informed by my counsel and believed to be true.

Dated this the 23rd day of June, 2025.


Deponent

Solemnly affirmed and signed by the deponent, who is personally known to me, on this the 23rd day of June, 2025, at my office at Ernakulam.

Vincent K.C., 

Advocate, K/270/1997.



കേരള സർക്കാർ
ലാൻഡ് റവന്യൂ വകുപ്പ്
രസീത്

ജില്ല : എറണാകുളം
താലൂക്ക് : കണ്ണമ്പനൂർ

KL07021200970/2025
വില്ലേജ് : കരിക്കാട്

തണ്ടപ്പേർ നമ്പർ 2082 അനുസരിച്ച് കരം ഒടുക്കിയതിന് രസീത്

ഇനം	ഉപ ഇനം	തുക	കാലയളവ്	വിശദാംശങ്ങൾ
1) അടിസ്ഥാന ഭൂനികുതി	തൻവർഷം	₹20	2024-2025	ബ്ലോക്ക്: 11, തണ്ടപ്പേർ നം : 2082 1) ജി ഇന്ദിര, എം ആർ ശ്രീധരൻ നായർ ഭാര്യ, ഇരുവിഹാർ, നടമ രിസർവ്വേഷൻ, വിസ്തീർണ്ണം, തരം 1) 73/2-5, 3 ആർ, 25 സ്ക്വ.മീ., നിലം ആകെ വിസ്തീർണ്ണം: 3 ആർ, 25 സ്ക്വ.മീ.
ആകെ തുക		₹20		

മേൽ വിവരിച്ച പ്രകാരം ₹20 (ഇരുപത് രൂപ) 2025 മാർച്ച് മാസം 26 തീയതിയായ ഇന്നേ ദിവസം സ്വീകരിച്ച് വില്ലേജ് കണക്കിൽ മുതൽ വച്ചിരിക്കുന്നു.

ഒടുക്കുന്നയാൾ : ജി ഇന്ദിര, ഇരുവിഹാർ

സ്ഥലം: കരിക്കാട്
തീയതി: 26/03/2025



SUDHEESH P M

വില്ലേജ് ഫീൽഡ് അഡ്വൈസർ

ഈ രസീത് റവന്യൂ വകുപ്പിന്റെ ഇ-പേയ്മെന്റ് സംവിധാനം മുഖേന തയ്യാറാക്കി ലഭ്യമാക്കുന്നതിനാൽ വില്ലേജ് ഓഫീസറുടെ ഒപ്പോ ഓഫീസ് സീലോ ആവശ്യമില്ല. രസീതിന്റെ ആധികാരികത റവന്യൂ വകുപ്പിന്റെ www.revenue.kerala.gov.in എന്ന പൊതുവെലിൽ പരിശോധിക്കാവുന്നതാണ്.

QR കോഡ് സ്കാൻ ചെയ്ത് രസീതിന്റെ ആധികാരികത ഉറപ്പ് വരുത്താവുന്നതാണ്.

$\frac{1}{r^2} \frac{d}{dr} \left(r^2 \frac{d\psi}{dr} \right) = 0$

റവന്യൂ റിമവെറി ഡെപ്യൂട്ടി കളക്ടറുടെ നടപടിക്രമം

(ഹാജർ അബ്ബാസ് വി . ഇ.)

DCEKM/13137/22 -B18

തീയതി 06-05-2025

വിഷയം :- 2018 ലെ കേരള നെൽവയൽ തണ്ണീർത്തട സംരക്ഷണ (ഭേദഗതി) ചട്ടങ്ങളിലെ ചട്ടം 4(ഡി) പ്രകാരം ഡാറ്റാ ബാങ്കിലെ ഉള്ളടക്കങ്ങൾ തിരുത്തുന്നതിന് ഫാരം 5 അപേക്ഷ - നിരസിച്ച് ഉത്തരവാകുന്നത് - സംബന്ധിച്ച്

സൂചന :- 1. ശ്രീമതി.ബി ഇന്ദിര,ഇന്ദു വിഹാർ,തെക്കുംഭാഗം, തൃപ്പൂണിത്തുറ, 17-10-2019 തീയതിയിൽ സമർപ്പിച്ച ഫാരം 5 അപേക്ഷ.

2. ചോറ്റാനിക്കര കൃഷി ഓഫീസർ സമർപ്പിച്ച 19/1/2024 ലെ CTKA-24/2023-24 നമ്പർ റിപ്പോർട്ട്.

3. 2018 ലെ കേരള നെൽവയൽ - തണ്ണീർത്തട സംരക്ഷണ (ഭേദഗതി) നിയമവും ചട്ടങ്ങളും.

ഫോർട്ടുകൊച്ചി റവന്യൂ ഡിവിഷൻ പരിധിയിൽ ഉൾപ്പെടുന്ന കണയന്നൂർ താലൂക്ക് കുരിശ്ശാട് വില്ലേജ് ബ്ലോക്ക് 11, റീസർവ്വെ 73/2-5ൽ പ്ലോട്ട് 03.25 ആർ ഭൂമിയുടെ ഡാറ്റാ ബാങ്കിലെ ഉള്ളടക്കങ്ങൾ തിരുത്തുന്നതിനായി 2018 ലെ കേരള നെൽവയൽ തണ്ണീർത്തട സംരക്ഷണ (ഭേദഗതി) ചട്ടങ്ങളിലെ ചട്ടം 4(ഡി) അനുസരിച്ച് ഫാരം 5 അപേക്ഷ ശ്രീമതി.ബി ഇന്ദിര, ഇന്ദു വിഹാർ, തെക്കുംഭാഗം, തൃപ്പൂണിത്തുറ സൂചന(1) പ്രകാരം സമർപ്പിച്ചിട്ടുള്ളതാണ്.

പ്രസ്തുത അപേക്ഷയിൽ അന്വേഷണം നടത്തി സൂചന (2) പ്രകാരം ചോറ്റാനിക്കര കൃഷി ഓഫീസർ റിപ്പോർട്ട് നൽകിയിട്ടുണ്ട്. കണയന്നൂർ താലൂക്ക് കുരിശ്ശാട് വില്ലേജ് ബ്ലോക്ക് 11, റീസർവ്വെ 73/2-5ൽ പ്ലോട്ട് 3.25 ആർ വിസ്തീർണ്ണം ഉള്ളതായ അപേക്ഷ ഭൂമി ഡാറ്റാ ബാങ്കിൽ ഉൾപ്പെട്ടിട്ടുള്ളതായി കൃഷി ഓഫീസർ റിപ്പോർട്ട് ചെയ്തിട്ടുള്ളതായി കാണുന്നു.

സ്ഥല പരിശോധന നടത്തിയതിൽ അപേക്ഷയ്ക്കനുസരമായ ഭൂമി ചതുപ്പ് സ്വഭാവവും വെള്ളക്കെട്ടോട് കൂടിയതും ചുറ്റിനുമുള്ള ഭൂമികളും സമാന സ്വഭാവം ഉള്ളതാണ് എന്നും ,അപേക്ഷ ഭൂമി ഡാറ്റാ ബാങ്കിൽ നിന്നും ഒഴിവാക്കേണ്ടതില്ല എന്ന് പ്രാദേശികതല നിരീക്ഷണ സമിതി ശുപാർശ ചെയ്തിട്ടുണ്ടെന്നും, പ്രസ്തുത തീരുമാനം 18-03-2020 തീയതിയിൽ ചേർന്ന സമിതി യോഗത്തിൽ കൈക്കൊണ്ടതും ആയത് 5-ാം നമ്പർ തീരുമാനം ആയി മിനിറ്റ് സിൽ രേഖപ്പെടുത്തിയിട്ടുണ്ട് എന്നും കൃഷി ഓഫീസർ റിപ്പോർട്ട് നൽകിയിട്ടുള്ളതാണ് .

ഈ കാര്യാലയത്തിൽ നിന്നും സ്ഥല പരിശോധന നടത്തിയതിലും അപേക്ഷ വസ്തു ഭാഗികമായി മാത്രം നികന്നതായി കാണുന്നു .സമീപ പ്രദേശങ്ങൾ പരിവർത്തനം നടന്നിട്ടില്ലാത്ത നിലം സ്വഭാവത്തിൽ സ്ഥിതി ചെയ്യുന്നതായി കാണുന്നു . ആയതിനാൽ അപേക്ഷ വസ്തു ഡാറ്റാ ബാങ്കിൽ നിന്നും ഒഴിവാക്കേണ്ടതില്ല എന്ന് കാണുന്നു

പ്രാദേശികതല നിരീക്ഷണ സമിതി തീരുമാനത്തിന്റെയും,ചോറ്റാനിക്കര കൃഷി ഓഫീസറുടെ റിപ്പോർട്ടിന്റെയും ഈ കാര്യാലയത്തിൽ നിന്നുള്ള സ്ഥലപരിശോധനയുടെയും അടിസ്ഥാനത്തിൽ അപേക്ഷ ഭൂമി ഡാറ്റാ ബാങ്കിൽ നിന്നും ഒഴിവാക്കേണ്ടതില്ല എന്ന് കാണുന്ന സാഹചര്യത്തിൽ സൂചന (1) അപേക്ഷയിൻമേൽ ചുവടെ ചേർക്കും പ്രകാരം ഉത്തരവ് പുറപ്പെടുവിക്കുന്നു.

ഉത്തരവ്

പ്രാദേശികതല നിരീക്ഷണ സമിതി തീരുമാനത്തിന്റെയും, ചോറ്റാനിക്കര കൃഷി ഓഫീസറുടെ റിപ്പോർട്ടിന്റെയും ഈ കാര്യവയത്തിൽ നിന്നുള്ള സ്ഥലപരിശോധനയുടെയും അടിസ്ഥാനത്തിൽ 2018 ലെ കേരള നെൽവയൽ തസ്തികത്തട സംരക്ഷണ (ഭേദഗതി) ചട്ടം 4 (എഫ്) പ്രകാരം കണയന്നൂർ താലൂക്ക് കൂരിക്കാട് വില്ലേജ് ബ്ലോക്ക് 11, റീസർവ്വെ 73/2-5ൽ പ്പെട്ട 03.25 ആർ വിസ്തീർണ്ണം ഉള്ളതായ ഭൂമി ഡാറ്റാ ബാങ്കിൽ നിലവായി നിലനിർത്തിക്കൊണ്ടും, ഡാറ്റാ ബാങ്കിലെ ഉള്ളടക്കങ്ങൾ തിരുത്തുന്നതിനായി സമർപ്പിച്ച സൂചന(1) അപക്ഷ നിരസിച്ചുകൊണ്ടും ഇതിനാൽ ഉത്തരവാകുന്നു.

Signed by

Abbas V E

Date: 06-05-2025 18:41:57

DEPUTY COLLECTOR



പകർപ്പ് :-

1. ശ്രീമതി.ബി ഇനീർ, ഇന്ത്യ വിഹാർ, തെക്കുംഭാഗം, മൂപ്പണിത്തുറ
2. വില്ലേജ് ഓഫീസർ, കൂരിക്കാട് (അപക്ഷ കക്ഷിക്ക് തടസ്സം ഉണ്ടാകുന്നതിലേക്കായി)
3. കൃഷി ഓഫീസർ, ചോറ്റാനിക്കര (നിവാരണസമരണം അനന്തരനടപടികൾക്കായി)
4. സെക്രട്ടറി, ചോറ്റാനിക്കര ഗ്രാമ പഞ്ചായത്ത് (നിവാരണസമരണം അനന്തരനടപടികൾക്കായി)

കേരള സർക്കാർ
 ആസൂത്രണ സാമ്പത്തികകാര്യ വകുപ്പ്
 കേരള സംസ്ഥാന റിമോട്ട് സെൻസിംഗ് ആന്റ്
 എൻവയോൺമെന്റ് സെന്റർ
 'സി' ബ്ലോക്ക്, വികാസ് ഭവൻ, തിരുവനന്തപുരം-695033
 ഫോൺ : 0471-2301167, 0471-2302268
 ഫാക്സ് : 0471-2300624
 ഇ-മെയിൽ : directorksrec@yahoo.in



Government of Kerala
 Planning & Economic Affairs Department
**Kerala State Remote Sensing &
 Environment Centre**

'C' Block, Vikas Bhavan, Thiruvananthapuram-695033
 Phone : 0471-2301167, 0471-2302268
 Fax: 0471-2300624
 Email: directorksrec@yahoo.in

No.A-172/2015/ KSREC/006538/24

Dated 02.11.2024

From

Director

To

The Agricultural Officer
 Chottanikkara Krishibhavan
 Ernakulam 682312

Sir,

Sub: - KSREC - Request for satellite data information for landuse /cover change detection report and maps of the survey plot 73/2 in Kureekkad Village, Kanayannoor Taluk, Ernakulam District .- Reg.

Ref: - Your letter no: CTKA 14/2024-25 dated 21/08/2024

Inviting attention to the reference cited, I am to forward herewith the detailed report with remarks along with the copies of supporting document for necessary action

Yours Faithfully

Sd/-
 Director

Approved for issue



Accounts Officer

Challan No: KL015943002202425M Dated 12/03/2024 Rs.1500/-

S.A-172/2015/KSREC/006538/24

REPORT ON LANDUSE CHANGE

The Kerala State Remote Sensing & Environment Centre (KSREC), the state nodal agency for remote sensing applications under Department of Planning and Economic Affairs, Thiruvananthapuram had received a request from Agricultural Officer, Krishibhavan, Chottanikkara- letter no: CTKA 14/2024-25 dated 21/08/2024 for landuse /cover change detection report and maps of the survey plot 73/2 in Kureekkad Village, Kanayannoor Taluk, Ernakulam District. KSREC had examined the survey plot mentioned in the letter with all available Indian Remote Sensing satellite (IRS) data in the Centre as well as online open source data available in public domain and reporting the following.

LOCATION OF THE STUDY AREA

District	—	Ernakulam
Taluk	—	Kanayannoor
Village	—	Kureekkad
Survey No.	—	73/2 (Fig. 1)



FIGURE - 1. LOCATION OF THE SURVEY PLOT

No.A-172/2015/KSREC/006538/24

The survey plot 73/2 in Kureekkad Village, Kanayannoor Taluk, Ernakulam District was vectorised and located in the Survey of India Toposheet number 58C05 of 1967 in 1:50,000 scale, using Ground Control Points. The survey plot lies between 9°55'42.954"N to 9°55'42.065"N latitude and 76°22'1.158"E to 76°22'3.329"E longitude.

DATA USED FOR CHANGE ANALYSIS

The location of the survey plot maps provided is identified in all available data sets using Remote Sensing (RS) and Geographical Information system (GIS). The boundaries of the survey plot mentioned in the request were drawn from the cadastral sheets pertaining to the area.

The following data sets were used for the analysis. The month and year of the satellite data used is mentioned in the respective maps provided for the survey number.

1. Topo Map	-	Year 1967	(58C05 Survey of India)
2. Cadastral Map	-	Year 1940	(Survey and land Records)
3. FMB	-	Survey & Land Records	
4. Satellite data	-	Year 2008	(Cartosat-I)
5. Satellite data	-	Year 2010	(Liss-IV)
6. Satellite data	-	Year 2011	(Google Earth)
7. Satellite data	-	Year 2017	(Google Earth)
8. Satellite data	-	Year 2021	(Google Earth)

ANALYSIS

High resolution ortho-rectified Indian Remote sensing satellite data products were used for geo-referencing the cadastral maps pertaining to the survey plot and change detection in land use and land cover of the site. **Figure.2** is the plot map superimposed / geo-referenced with CARTOSAT-1 data. These imageries show the spatial reference of plot in ground. **Figure.3** is the plot map superimposed / geo-referenced with LISS-IV data. These imageries show the spatial reference of plot in ground.

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FIGURE – 2. SURVEY PLOT GEO-REFERENCED WITH INDIAN REMOTE SENSING SATELLITE DATA – CARTOSAT-I (2008)



FIGURE – 3. SURVEY PLOT GEO-REFERENCED WITH INDIAN REMOTE SENSING SATELLITE DATA – LISS-IV (2010)

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FIGURE – 4. SURVEY PLOT GEO-REFERENCED WITH 2011 SATELLITE DATA



FIGURE – 5. SURVEY PLOT GEO-REFERENCED WITH 2017 SATELLITE DATA

No.A-172/2015/KSREC/006538/24

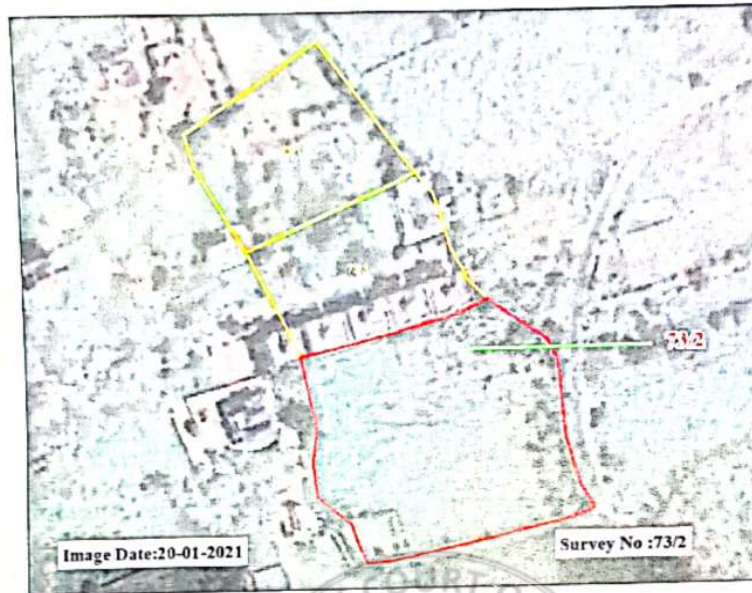


FIGURE – 6. SURVEY PLOT GEO-REFERENCED WITH 2021 SATELLITE DATA

SURVEY NUMBER 73/2

As per the toposheet of 1967, the survey plot 73/2 was observed as paddy land. The plot bordered by a road on south and south-east side was observed under fallow land with scattered vegetation along with plantation/trees towards east side in the data of 2008 (Fig.2), 2010 (Fig.3) and 24/01/2011 (Fig.4). The same land use pattern was observed to continue with partially exposed soil towards south-west side in the data of 02/01/2017 (Fig.5). The data of 20/01/2021 (Fig.6) shows the plot under vegetation cover with plantation/trees towards east side.

LIMITATIONS

This report is prepared based on the observations from the available satellite data of different years without physical verification.

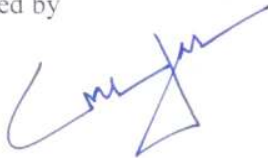
No.A-172/2015/KSREC/006538/24

OBSERVATIONS & CONCLUSION

The analysis has been carried out from all available data sets of toposheet (1967) and different satellite data sets of 2008, 2010, 2011, 2017 and 2021 for the survey plot.

As per the toposheet of 1967, the survey plot 73/2 was observed as paddy land. The plot bordered by a road on south and south-east side was observed under fallow land with scattered vegetation along with plantation/trees towards east side in the data of 2008, 2010 and 2011. The same land use pattern was observed to continue with partially exposed soil towards south-west side in the data of 2017. The data of 2021 shows the plot under vegetation cover with plantation/trees towards east side.

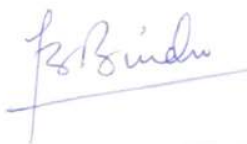
Prepared by



Mijas A. R.
Project Scientist

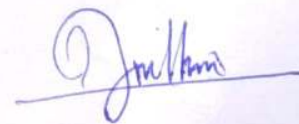


Verified by



Bindu P. Ramankutty
Senior Scientific Assistant

Approved by



Dr. S. Jane Mithra
Scientist, KSREC

BEFORE THE HON'BLE HIGH COURT OF KERALA AT ERNAKULAM

W.P.(c) No. _____ of 2025

Indira G.

..Petitioner

Versus

State of Kerala and others

..Respondents

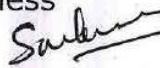
VAKALATH

I, Indira G., aged 67 years, W/o Sreedharan Nair, Indu Vihar, Kailas Nagar, Kannankulangara, Thripunithura, Ernakulam-682301, the petitioner in the above matter do hereby appoint and retain

Sri. K.C. Vincent, Advocates, to appear for me/us in the above matter and to conduct and prosecute (or defend) the same and all proceedings that may be taken in respect of any application connected with the same or any decree or order passed therein, including all applications for return of documents, applications for review and to draw any money payable to me in the said Petition

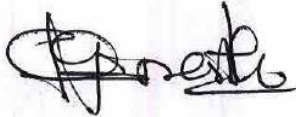

 Indira G.
 Indira G.
Dated this the 23rd day of June, 2025

In the presence of : Witness

M.K. Sukumaran 
 Mettel (H), Chakkampuzha, Kottayam - 686574

Certified that the executants are known to me and that this vakalath was read by them and they seemed to understood the same and executed and signed before me this the 23rd day of June, 2025.

Accepted



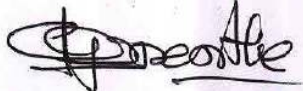
Vincent K.C.

Advocate, Mob.No. 9447104904

2nd Floor 68/1440,

Tatapuram Sukumaran Road,

Providence Road North End, Ernakulam-682018


 Vincent K.C.(K 270/1997)

Advocate